

MAYOR OF LONDON

Iain Williams

Senior Planning Officer
Environment, Housing and Regeneration
London Borough of Sutton
24 Denmark Road
Carshalton
SM5 2JG

Our ref: GLA/22651/02/JK

Your ref: DM2019/01225

Date: 3/02/20

Dear Mr Williams

**Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008
156 Beddington Lane**

I refer to your letter of 28 January 2020, informing me that Sutton Council is minded to grant planning permission for the above planning application.

The Mayor has delegated his planning powers to me and having now considered a report on this case, I am content to allow Sutton Council determine the case itself, subject to any action that the Secretary of State may take, and do not therefore wish to take over the application for my own determination.

Yours sincerely



Jules Pipe

Deputy Mayor for Planning, Regeneration and Skills

cc Unmesh Desai, London Assembly Constituency Member
Andrew Boff, Chair of London Assembly Planning Committee
National Planning Casework Unit, DCLG
Lucinda Turner, TfL
David Payne, BPP Consulting LLP

156 Beddington Lane

in the London Borough of Sutton

planning application no. DM2019/01225

Strategic planning application stage II referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Change of use from existing waste land use to B8 use (storage and distribution)

The applicant

The applicant is **777 Land Holdings Ltd** and the agents are **BPP Consulting Ltd**.

Key dates

Stage 1 report: 14 October 2019

Council's Committee meeting: 8 January 2020

Strategic issues

Principle of Development: The proposed change of use to a B8 storage and distribution use complies with the SIL designation of the site. The site is proposed to be released in the Issues and Preferred Options Document for the emerging South London Waste Plan and evidence has been provided to demonstrate appropriate capacity/intensification of neighbouring sites. The proposal is in accordance with Policies 5.17 and 5.18 of the London Plan and Policies SI8 and SI9 of the Mayor's Intend to Publish London Plan.

Transport: Appropriate conditions have been secured to reduce the impact of freight traffic and ensure cycle parking and blue badge parking requirements are met.

The Council's decision

In this instance Sutton Council has resolved to grant planning permission.

Recommendation

That Sutton Council be advised that the Mayor is content for it to determine the case itself, subject to any action that the Secretary of State may take, and does not therefore wish to direct refusal.

Context

1 On 8 August 2019 the Mayor of London received documents from Sutton Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. This was referred to the Mayor under Category 3G of the Schedule to the Order 2008:

1. Development which-

(a) *Involves a material change of use;*

(b) *Does not accord with one or more provisions of the development plan in force in the area in which the application site is situated,*

(c) *Where the application site is used or designed to be used wholly or mainly for the purpose of treating, keeping, processing, recovering or disposing of refuse or waste materials; and*

(d) *The application site-*

(i) *Occupies more than 0.5 hectares; or*

(iii) *Contains an installation with a capacity for a throughput of more than 20,000 tonnes per annum of waste.*

2 On 14 October 2019 the Mayor considered planning report GLA/2265i/01 and subsequently advised Sutton Council that the application was acceptable in principle, but that it did not fully comply with the London Plan and draft London Plan for the reasons set out in paragraph 38 of the above-mentioned report. However, the resolution of those issues could lead to the application being fully compliant with the London Plan and draft London Plan.

3 A copy of the above-mentioned report is attached. The essentials of the case with regard to the proposal, the site, case history, strategic planning issues and relevant policies and guidance are as set out therein, unless otherwise stated in this report. On 8 January 2020 Sutton Council decided that it was minded to grant planning permission. Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008 the Mayor may allow the draft decision to proceed unchanged or direct Sutton Council under Article 6 to refuse the application.

4 The decision on this case, and the reasons, will be made available on the GLA's website www.london.gov.uk.

Consultation stage issues summary

5 At consultation stage, Sutton Council was advised that the application is supported in principle; however, the resolution of the outstanding issues set out below would be required in order for the application to be fully compliant with the London Plan and draft London Plan:

- **Principle of development:** Whilst the proposed change of use to a B8 storage and distribution use complies with the SIL designation of the site, confirmation is required from the South London Waste Plan group that the site can be

released as a safeguarded waste site. Evidence should be provided to robustly demonstrate how the loss of the safeguarded waste site can be compensated with appropriate capacity/ intensification of neighbouring sites in accordance with Policies 5.17 and 5.18 of the London Plan and Policies SI9 and SI7 of the draft London Plan.

- **Transport:** Further information is requested to confirm the traffic impact of the proposed development, including confirmation on car and cycle parking numbers and the provision of a Delivery and Servicing Plan to reduce the impact of freight traffic.

Update

6 Since Stage 1, GLA officers have reviewed further information, and engaged in discussions with the applicant and Sutton Council with a view to addressing the outstanding matters. Furthermore, as part of the Council's draft decision on the case, various planning conditions have been proposed to ensure that the development is acceptable in planning terms.

Principle of Development

At Stage 1, officers advised that the loss of a safeguarded waste site to B8 use may be acceptable subject to:

- confirmation that the new South London Waste Plan is not intending to include the 156 Beddington Lane site in its waste management allocations/apportionment in the future;
- assurance that the quantum of safeguarded waste capacity proposed to be displaced from 156 Beddington Lane (38,129tpa) would be re-provided as genuine additional capacity at 154a Beddington Lane (to be secured by Section 106 agreement); and,
- evidence that further intensification of 154a Beddington Lane in response to the emerging objectives of the new South London Waste Plan would be feasible and deliverable within the new plan period.

7 The South London Waste Technical Paper, referred to in the Stage 1 response, noted the applicant's intention to release the 156 Beddington Lane for other uses and provide compensatory capacity at the neighbouring site 154a Beddington Lane (777 Recycling).

8 Since the consultation stage, the Issues and Preferred Options Document for the South London Waste Plan has been released for consultation (October 2019). This represents progression of the new South London Waste Plan from the evidence base technical paper that officers reported on at Stage 1.

9 Appendix 2 of the Issues and Preferred Options Document for the South London Waste Plan lists 'the site' (site 96 Severnside Waste Paper) as closed and capacity transferred to Site S11: TGM Environmental (112 Beddington Lane).

10 The site description for 112 Beddington Lane (S11) states that the site is currently used for skip and vehicle storage by Raven Recycling however has planning permission for waste paper and cardboard recovery by TGM Environmental with a throughput of 15,000 tonnes per annum. The site description also considers that the opportunity to increase waste has not been managed at this site because the operation has yet to relocate from 156 Beddington Lane ('the site'). However 112 Beddington Lane 'offers additional space to enable the operator to undertake baling on site which did not take place on the previous site. The throughput is average for the size of the site and so it is unlikely that the facility can be intensified in its current form.'

11 It is understood that the reference above refers to a temporary exemption from the Environment Agency which allowed the collection, bulking and transfer of waste paper at the site and which is to be relocated to the 112 Beddington Lane. Although only at consultation stage, officers consider that the Issues and Preferred options Document gives more certainty as to the direction of the new South London Waste Plan. The document already assumes some operations from 156 Beddington Lane (although not implemented) are relocated to 112 Beddington Lane.

12 Furthermore, there is no apportionment given to the application site within the Issues and Preferred Options document out for consultation. Officers conclude it is reasonable to assume that the South London Waste Plan is not intending to include the 156 Beddington Lane site in its waste management allocations/apportionment in the future.

13 At stage 1, the applicant was also asked to provide evidence that further intensification of 154a Beddington Lane in response to the emerging objectives of the new South London Waste Plan would be feasible and deliverable within the new plan period. The applicant has provided further explanation of how the site could maximise its capacity with existing infrastructure.

14 While some operations are expected to be transferred to 112 Beddington Lane, the applicant has demonstrated that the safeguarded capacity of 38,128 tonnes can be compensated at the neighbouring site.

15 The Issues and Preferred Options document for the South London Waste Plan site description for the neighbouring site 154a Beddington Lane (S1) refers to the current maximum throughput being just under 57,000 tonnes but that the operator states the site could manage more waste. The site is identified with potential for intensification.

16 Based on the information provided, officers consider the neighbouring site will be able to be intensified. While not secured in a S106 agreement, the new South London Waste Plan is being developed which assumes intensification of the site. Given the progression of the Issues and Preferred Document to consultation stage, there is more certainty that the new plan will secure the additional intensification needed.

17 The Mayor's Stage 1 concerns regarding the principle of land use have been resolved and the principle of land use is acceptable.

Transport (waiting on TfL comment- will update Monday if anything provided)

18 Since Stage 1, the applicant has provided further information to respond to a query raised around trip generation at the site. The information suggests that at worst case the site could generate up to 160 total vehicle movements per day (arrivals and departures). Of these trips, around half would be apportioned to Heavy Goods Vehicles (HGVs). The impact to the highway network based on this level of vehicle movements would not be a concern. However, it was discussed that should the site generate a greater number of vehicle movements in line with the proposed restriction of up to 400 vehicle movements per day, of which half could be HGVs, the impact to the highway network could be much more severe. This was raised as a concern because of the cumulative impact of HGV traffic in the locality of the A23 corridor.

19 The Council has secured an appropriately worded condition to restrict vehicle movements to no more than 400 vehicle movements (including arrivals and departures) per day. While an Indicative Delivery and Servicing Plan was provided during the course of the application, the Council has also secured a condition to require a full Delivery and Servicing Plan to be provided. To reduce the cumulative impact on the highway network, including the A23 corridor, the Council was advised that an HGV routing strategy should also be provided with the detailed Delivery and Servicing Plan and this has been included in the wording of the draft condition.

20 At stage 1, the applicant was requested to confirm the quantity of cycle parking spaces. While the applicant has not confirmed the provision of cycle parking, a condition is included to require the full details of cycle parking. A condition is also included that requires the provision of 1 Blue Badge parking space. A condition requiring a TRICS compliant survey to be undertaken within 6 months of occupation, and reported to the Council and TfL has also been included.

21 The transport matters raised at Stage 1 have been addressed by the applicant and through conditions imposed by the Council in its draft decision.

Response to consultation

22 Sutton Council publicised the application via a site notice displayed in the vicinity of the site on the 6 August 2019 and a press notice in the local newspaper on the 8 August 2019. Letters were also sent to 13 neighbouring occupiers dated 30 July 2019. No representations were received.

23 The following statutory bodies and other groups also commented on the proposal:

- Environment Agency: No objection
- London Borough of Croydon: No comments received
- Thames Water: No comments received

Consultation conclusion

24 GLA officers are satisfied that the statutory and non-statutory responses to the Council's consultation process do not raise any material planning issues of strategic importance that have not already been considered at Stage 1 and/or in this report.

Draft Section 106 agreement

25 No S106 agreement is considered with this application.

Legal considerations

26 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor has the power under Article 6 to direct the local planning authority to refuse permission for a planning application referred to him under Article 4 of the Order. The Mayor may also leave the decision to the local authority. In directing refusal the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice.

Financial considerations

27 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. Government Planning Practice Guidance emphasises that parties usually pay their own expenses arising from an appeal.

28 Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy.

Conclusion

29 The strategic issues raised at consultation stage regarding sustainable development and transport have been appropriately addressed, and conditions have been secured. As such, the application complies with the London Plan and the Mayor's Intend to Publish London Plan and there are no sound reasons for the Mayor to intervene in this case.

for further information, contact GLA Planning Unit (Development & Projects Team):

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